

April 24, 2007



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 12290
(FOURTH REVISION)

EXPIRATION DATE: March 31, 2011

(FOR RENEWAL, SEE 49 CFR § 107.109.)

1. GRANTEE: Savage Services Corporation
Pottstown, PA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the loading of tank cars, coupled in a series with the bottom discharge outlet caps in place on all cars except the first and last, with the setting of the hand brake and the blocking of a wheel, in both directions, on the first and last cars of a series of coupled tank cars, prior to unloading. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specially stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.302(c) in that marking the special permit number on tank cars is waived; and § 174.67(a)(2).
5. BASIS: This special permit is based on Savage Services Corporation's application dated April 23, 2007, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Acetone	3	UN 1090	II
Acetic acid, glacial or Acetic acid solution, <i>with more than 80 percent acid, by mass.</i>	8	UN 2789	II
Bisulfites, inorganic, aqueous solution, n.o.s.	8	UN 2963	III
Butyl acetates	3	UN 1123	II
Carbon dioxide, refrigerated liquid	2.2	UN 2187	N/A
Combustible liquid, n.o.s.	Combustible	NA 1993	III
Corrosive liquid, n.o.s.	8	UN 1760	I
Diesel fuel	3	NA 1993	II
Elevated temperature material, liquid, n.o.s., <i>at or above 100 C and below its flash point (including molten metals, molten salts, etc.)</i>	9	UN3257	III
Environmentally hazardous substance, liquid, n.o.s.	9	UN 3082	III
Ethyl methyl ketone or Methyl ethyl ketone	3	UN 1193	II
Ferric chloride solution	8	UN 2582	III
Ferrous chloride solution	8	NA 1760	II
Flammable liquid n.o.s.	3	UN 1993	I
Fluorosilicic acid	8	UN 1778	II
Fuel, aviation, turbine engine	3	UN 1863	III

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/Division	Identification Number	Packing Group
Fuel oil (No. 1, 2, 4, 5, or 6)	3	NA 1993	III
Gasoline	3	UN 1203	II
Hazardous waste, liquid, n.o.s.	9	NA 3082	III
Heptanes	3	UN 1206	II
Hexanes	3	UN 1208	II
Hydrochloric acid	8	UN 1789	II
Hydrogen peroxide, aqueous solutions, stabilized with more than 60 percent hydrogen peroxide	5.1	UN 2015	II
Isopropanol or Isopropyl alcohol	3	UN 1219	III
Petroleum distillates, n.o.s. or Petroleum products, n.o.s.	3	UN 1268	III
Petroleum gases, liquefied or Liquefied petroleum gas	2.1	UN 1075	
Petroleum oil	3	NA 1270	III
Phosphoric acid, liquid or solid	8	UN 1805	III
Potassium hydroxide, solution	8	UN 1814	II
Sodium hydroxide solution	8	UN 1824	II
Sulfur, molten	9	NA 2448	III
Sulfuric acid with more than 51 percent acid	8	UN 1830	II
Toluene	3	UN 1294	II
Toluene diisocyanate	6.1	UN 2078	II
Waste combustible liquids, n.o.s.	Combustible	NA 1993	III

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Xylenes	3	UN 1307	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed are DOT Specification and non-DOT Specification tank cars authorized by the HMR for the products indicated above. Packages must be equipped with efficient hand brakes which must comply with the Railroad Safety Appliance standards in 49 CFR Part 231.

b. MARKING - The marking requirement in § 172.302(c) is waived.

8. SPECIAL PROVISIONS:

a. On a series of coupled cars, the bottom discharge outlet valve caps of the first and last tank cars must be removed when loading.

b. The bottom discharge outlet valve assembly of each tank car operating under this special permit must be visually inspected every fifteen (15) trips or at a minimum quarterly.

c. The hand brake must be set and at least one wheel blocked in both directions on the first and last car provided the grade of the track is less than or equal to 0.5 percent.

d. For grades exceeding 0.5 percent, the following table must be used to determine the percentage of additional hand brakes to be applied:

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Grade Percent	Percentage of cars to have hand brakes applied
< 0.5	0
> 0.5 < 0.6	20
> 0.6 < 0.7	35
> 0.7 < 0.8	50
> 0.8 < 0.9	65
> 0.9 < 1.0	80
> 1.0	100

e. Shipping papers displaying 'DOT-E 12290' may continue to be used until October 1, 2007, provided the special permit remains valid.

9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.
10. MODAL REQUIREMENTS: The Federal Railroad Administration is to be notified if any unusual incident such as derailment or exterior tank car damage occurring from movement by contacting the:
- Federal Railroad Administration
Hazardous Materials Division
RRS-12, Mail Stop 25
1120 Vermont Avenue, N.W.
Washington, D.C. 20590
(202) 439-6229 or 493-6248
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Bob Richard
Deputy Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

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Copies of this special permit may be obtained by accessing the
Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

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PO: WS/sln